IN THE SUPERIOR COURT OF JUDICATURE AND IN THE HIGH COURT OF JUSTICE, AMASAMAN, ACCRA IN THE GREATER ACCRA REGION HELD BEFORE HIS LORDSHIP JUSTICE ALEXANDER GRAHAM (J); JUDGMENT DELIVERED; ON MONDAY THE 15TH DAY OF DECEMBER, 2025

SUIT NO: El/AHC/ 14/2023

SOLOMON MINTAH ACKAAH - PLAINTIFF

(Suing as Head and Lawful Representative of the Akwanor Royal Family of Ashalaja)

VRS

GHANA NATIONAL TAILORS & DRESSMAKERS ASSOCIATION - DEFENDANT

(Sued by its Taifa Branch Executives)

JUDGMENT

The Plaintiff's Claims is for:

a) A declaration that the purported acquisition of the parcel of the Plaintiff's family land by the Defendants from Adams Addy and Adu Akwanor as joint heads of family referred to in paragraphs 6 are null and void and of no effect.

b) Declaration of title to all that ALL THAT land situate at Ashalaja in the Ga District of the Greater Accra Region of the Republic of Ghana bounded on the North East by Lessor's Land measuring 442.4 feet, 415.0 feet respectively more or less on the South East by Lessor's Land measuring 419.9 feet, 520.7 feet respectively more or less on the South West

by Lessors' Land measuring 424.9 feet, 554.6 feet more or less on the North West by Lessor's Land measuring 492.8 feet, 302.2 feet more or less and containing an approximate area of 16.658 acres or 6.747 Hectares more or less.

c) Recovery of possession of the said land.

d) An order for the demolition of all structures erected by the Defendant, its agents, privies and assigns on the Plaintiff's family land.

e) A perpetual injunction restraining the Defendant, its agents, assigns privies, tenants and sublessee from entering, developing occupying, selling, leasing or in any way dealing with the Plaintiff's family land.

f) And order cancelling the land title certificate dated 23rd December, 2008 number GA. 28472 volume 11 and folio 28.

g) Cost

The Defendant counter claims for:

i) Declaration of Title to land described in paragraph 13 of Defendant's Statement of Defence.
ii) An order for possession.
iii) Damages for trespass unto the land
iv) Perpetual Injunction restraining the plaintiff, his assigns, workmen and all those who claim through him from interfering with Defendant's use of the land.
v) Cost including legal fee.

PLAINTIFF'S CASE

The Plaintiff states that he is the Head and Lawful Representative of the Akwanor Royal Family of Ashalaja in Accra, and that he brings this action in that representative capacity.

According to him, the Defendant is an association and a company limited by guarantee. The Plaintiff asserts that the Akwanor Royal Family are the true owners and custodians of all Ashalaja lands, and as the Head of the Family, he is the only person lawfully authorized to alienate, lease, sell, convey or sign any title documents relating to land transactions involving Ashalaja lands.

The Plaintiff explains that the Defendant claims to have acquired a total of about 16.658 acres of land belonging to the Akwanor Royal Family by an indenture dated 16th April 2007. The land in question, as he sets out, is situated at Ashalaja in the Ga District of the Greater Accra Region. It is bounded on the northeast by Lessor's land measuring 442.4 feet and 415.0 feet respectively; on the southeast by Lessor's land measuring 419.9 feet and 520.7 feet; on the southwest by Lessor's land measuring 424.9 feet and 554.6 feet; and on the northwest by Lessor's land measuring 492.8 feet and 302.2 feet, making a total of 16.658 acres or 6.747 hectares. The Plaintiff states that this land is part of the Akwanor Royal Family's property and therefore falls within his authority as Head of Family.

According to the Plaintiff, the Defendant claims to have acquired the said land from two persons, namely Adams Addy and Adu Akwanor, who purported to act as joint heads and lawful representatives of the Akwanor Royal Family of Ashalaja. The Plaintiff emphatically denies this, stating that the two persons are not, and have never been, heads or lawful representatives of the family, and therefore had no authority to transact land on behalf of the family.

To support his position, the Plaintiff refers to earlier litigation, specifically Suit No. BFA 49/13 titled *Solomon Mintah Ackaah v. Adams Addy & Adu Akwanor*, in which the High Court, Accra, declared that he, the Plaintiff in the present action, is the true Head and Lawful Representative of the Akwanor Royal Family of Ashalaja. In the same judgment, the High Court held that any acts carried out by the two persons in their purported capacities as joint heads were null and void. The court also ordered them to hand over

authority to the Plaintiff and restrained them from further acting in any such capacity. The Plaintiff further states that this decision of the High Court was affirmed by the Court of Appeal in Suit No. A1/90/2019, *Adams Addy & Anor v. Solomon Mintah Ackaah*, and subsequently affirmed by the Supreme Court of Ghana. He therefore argues that the validity of his position as Head of Family is no longer in doubt, having been confirmed by all three superior courts.

In view of these judgments, the Plaintiff contends that the Defendant did not acquire any valid interest in the land, as the persons from whom they claim to have acquired the property had no authority to act on behalf of the family. He stresses that the purported land transaction is null and void, and that the land in question remains the property of the Akwanor Royal Family, under his leadership. He adds that neither he nor the family received any consideration from the two individuals or from the Defendant for the alleged sale of the land, further confirming the invalidity of the purported transaction.

The Plaintiff states that despite having no valid title, the Defendant has entered the family's land, graded it, developed portions, and sold parts to private individuals without his consent. He asserts that the Defendant persists in its trespass despite repeated warnings and even reports made to the Police. In addition, the Plaintiff says that the Defendant relies on a Land Title Certificate numbered GA 28472, Volume 011, Folio 28, which they claim covers the disputed land. The Plaintiff maintains that this title certificate is null and void because it is not grounded on any valid acquisition or lawful title. He argues that the certificate was issued in error or by mistake and must therefore be cancelled by the court.

In conclusion, the Plaintiff asserts that the Defendant's continued activities on the land constitute unlawful trespass that will not cease unless restrained by an order of the court. He therefore seeks the intervention of the court to uphold the family's rights, cancel the

Defendant's purported title, and restrain the Defendant from further interference with the Akwanor Royal Family's lands.

DEFENDANT'S CASE

The Defendant admits that it is an association and a company limited by guarantee, and further acknowledges that the Akwanor family are the original owners of Ashalaja lands. However, it disputes the Plaintiff's attempt to disturb what it considers a legally secure title to the land in dispute. The Defendant does not challenge the Plaintiff's assertion that he was declared the Head and Lawful Representative of the Akwanor family by the High Court, but emphasises that this declaration was made only around 2018. According to the Defendant, its own acquisition of the land occurred in 2007 "eleven good years," as it puts it before the Plaintiff was ever declared head of family. It therefore maintains that the Plaintiff's subsequent recognition as head of the family cannot retroactively invalidate a land transaction that was lawfully completed long before that judicial declaration.

The Defendant explains that in 2007, acting through its then chairman, Stephen Asomani, it lawfully acquired the disputed land from persons who were, at that time, the recognized representatives of the Akwanor family—namely, Adams Addy and Adu Akwanor. These two individuals, the Defendant asserts, were the joint heads and lawful family representatives who had the authority to grant land on behalf of the Akwanor Royal Family. The transaction was formalised through an indenture executed on 16th April 2007, complete with a site plan. The dimensions and boundaries of the land conveyed under this indenture correspond exactly to those described by the Plaintiff: a parcel measuring about 16.658 acres or 6.747 hectares, bounded on all sides by the lessor's land. Relying on this conveyance, the Defendant says it immediately took possession of the land, erected boundary pillars, demarcated the land into individual building plots, and fixed corner pillars for each plot.

The Defendant recounts that, following the acquisition and physical possession, it submitted the required conveyancing documents to the Land Title Registry of the Lands Commission. In the ordinary course of registration, it received the customary "yellow card" indicating the commencement of title registration and was eventually issued with Land Title Certificate No. GA 28472 over the land. With this certificate in hand, the Defendant was confronted with encroachment by two individuals, Emmanuel Agyare and Hasim Haruna. It initiated legal proceedings against them in Suit No. C1/04/18 before the Amasaman Circuit Court, styled *Ghana National Tailors and Dressmakers Association (Taifa Zone) v. Emmanuel Agyare & Hasim Haruna*. The Defendant states that the Circuit Court ruled in its favour, declaring its title to the land. A writ of possession was issued, and the Defendant executed it, thereby reinforcing its possession.

Shortly after the execution of the writ, one Osumanu Quaye appeared, claiming that the land belonged to his own family the Ashalaja family and not to the defendants previously sued. In his affidavit, Quaye described himself as the customary successor of Naa Dansoa Kwannor and head of the Kwannor family. In light of this new claim, the Circuit Court set aside its earlier judgment and directed that the case be recommenced under a new suit number: G/AN/CG/C1/29/20, with the Ghana National Tailors and Dressmakers Association remaining as plaintiff and Agyare, Haruna, and Quaye listed as defendants.

According to the Defendant, these defendants were properly served, including by substituted service, but refused to enter appearance or defend the suit. The Court thus permitted the present Defendant (as plaintiff in that action) to present its evidence unchallenged, which it did. Upon consideration of that evidence, the Court again entered judgment in its favour. A fresh writ of possession was issued and executed, leading to renewed enforcement of its possession over the disputed land.

On the basis of these legal proceedings, the Defendant argues that the Akwanor family, having lawfully granted the land to it in 2007, no longer has any interest to reclaim. It

asserts that the judgments of the Amasaman Circuit Court bind all persons claiming through the defendants in those suits, including members of the Akwanor family and the present Plaintiff. It maintains that the Plaintiff cannot now seek to relitigate issues that were finally determined by the Circuit Court and enforced through a writ of possession. It further argues that it has been in uninterrupted, open possession of the land since 2007, and that the Plaintiff is barred by laches, acquiescence, and the provisions of the Limitation Act, NRCD 54 from disputing its long-standing occupation and title.

The Defendant adds that even if it were ultimately determined that it acquired the land from the "wrong people," it nonetheless qualifies as an innocent purchaser for value without notice and is entitled to the protection afforded to bona fide purchasers. It argues that the High Court, Court of Appeal, and Supreme Court judgments relied upon by the Plaintiff do not bind it because those judgments were delivered long after its acquisition and because it was a complete stranger to those proceedings. It emphasizes the principle that a person cannot be bound by a judgment in which they were never heard or given the opportunity to be heard.

Finally, the Defendant asserts that if the Plaintiff is dissatisfied with the outcomes of the Circuit Court proceedings, his remedy lies in appealing those judgments rather than initiating a fresh action in the High Court. It concludes that no valid title remains in the Plaintiff or his family, and insists that it is not a trespasser but the rightful owner and lawful possessor of the land.

At the close of pleadings, the following issues were set down for trial.

The plaintiff filed Application for Directions on 23rd December, 2022 and the issues therein are set out below;

i. Whether or not the Plaintiff is the proper person to alienate Akwanor Royal Family of Ashalaja lands.

ii. Whether or not the courts have declared all prior alienations by Adams Addy and Adu Akwanor null and void.

iii. Whether or not the purported judgment obtained by the Defendants are binding on the Plaintiff.

iv. Any other issues arising out of the pleadings.

Additional issues were filed by the Defendant on 23rd January, 2023 are the issues are produced as follows;

i. Whether or not in the year 2007 the defendant acquired the land in dispute from the same AKWANOR ROYAL FAMILY of ASHALAJA though Adams Addy the Head and lawful Representative of the family together with other principal members of the family.

ii. Whether or not the judgment of the Amasaman Circuit Court declaring the Plaintiff now the Defendant as the owner of the land in dispute has been set aside on appeal.

iii. Whether or not the judgment of the Amasaman Circuit Court, a court of competent Jurisdiction is binding on the defendants and their privies including the plaintiff in this suit.

iv. Whether or not the plaintiff is estopped by laches, acquiescence and the Limitations Act NRCD 54.

v. Whether or not the plaintiff can enforce the alleged High Court and the Court of Appeal judgments on the defendant who is stranger to the suit and did not take part in the proceedings.

vi. Whether or not the plaintiff can enforce the alleged Supreme Court judgment on the defendant, a complete stranger.

vii. Whether or not the defendant is an INNOCENT PURCHASER FOR VALUE WITHOUT NOTICE

viii. Whether or not the plaintiff is entitled to his claims.

ix. Whether or not the Defendant is entitled to its counter-claim.

There were as many as thirteen issues including additional issues that the parties raised at the pre-trial for the consideration of, and for determination by the trial court. However, the law is that what issues are germane and
central to the determination of controversy between parties lies with the trial judge to decide. The courts are therefore not tied down to only the issues agreed upon by the parties at the pre-trial but all issues emerging from the entire spectrum of the case, provided that evidence was led on them, even if those issues were not specifically set down for hearing. **SEE: KARIYAVOUOLAS V OSEI [1982-83] GLR 658.** In **FIDELITY INVESTMENT ADVISORS V ABOAGYE-A [2003-2005] 2 GLR 118** the court stated the law that what issues were relevant and essential to a case was a matter of law for the trial judge to decide.

The Court considered the following key issues:

1. Whether the Defendant validly acquired the disputed land in 2007 from persons with lawful authority to grant Akwanor Royal Family land.

2. Whether the Plaintiff's judicial recognition as Head of Family (High Court, Court of Appeal, Supreme Court) nullified or affects the Defendant's 2007 acquisition.

3. Whether the Amasaman Circuit Court judgments declaring the Defendant owner of the land are valid, binding, and operate as estoppel against the Plaintiff.

4. Whether the Defendant is an innocent purchaser for value without notice.

5. Whether either party is entitled to the reliefs/claims endorsed on their respective pleadings.

In order to prove his case, Plaintiff testified and did not call any witness.

In order to prove his case Defendant testified through two witnesses who are:

1. Stephen Asomani (DW 1)

2. George Owusu (DW 2).

APPLICABLE LAW

The general rule is that, in a civil case, the party who in his pleadings or writ raises issues essential to the success of his case assumes the onus of proof. It follows that since the plaintiff in a civil suit claim against the defendant, the plaintiff is saddled with the burden of proving his case. **Section 14 Evidence Act 1975, NRCD 323** provides as follows:

"Except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting".

Explaining the principles relating to producing evidence, the erudite scholar S.A. Brobbey in his book "**Essentials of the Ghana Law of Evidence**" states at page 31 as follows;

"This literally means the proof lies upon him who affirms, not on him who denies, since by the nature of things, he who denies a fact cannot produce proof. He went on further to state that:

makes a positive assertion at the start of the trial, he bears the legal burden. At the same time, he bears the evidential burden to adduce evidence at the start of the trial".

In the case of **NARTEY V MECHANICAL LLOYD ASSEMBLY PLANT LTD [1987-88] 2 GLR 314**, Adade JSC stated that;

"a person who comes to court no matter what the claim must be able to make good case for the court to consider, otherwise he must fail".

Also, in the case of **TAKORADI FLOUR MILLS V SAMIR FARIS [2005 - 2006] SCGLR 882** at page 900, Ansah JSC stated as follows:

"It is sufficient to say that this being a Civil suit, the rules of evidence require that Plaintiff produces sufficient evidence to make out his claim on a preponderance of probabilities as defined in Section 12(2) of the evidence Act NRCD 323. However as pointed out in Section 14 of the Evidence Act 1975, NRCD 323 the onus of proof shifts on the defendant where he puts up a counterclaim."

In the case of **BARIMA GYAMFI VRS AMA BADU [1963] 2 GLR 596 S.C**., where it was held that the evidence of the defence only becomes important if it can upset the balance of probabilities which the plaintiff's evidence might have created in the plaintiff's favour or if it tends to corroborate the plaintiff's evidence or tends to show that the evidence led on behalf of plaintiff was true.

The standard of proving a case is sufficiently provided for in Sections 10, 11 and 12 of the Evidence Act 1975, NRCD 323 which sets out the obligation of proving a case on a balance of probabilities and on a preponderance of evidence.

Section 11 Evidence Act states:

(1) "For the purposes of the Decree the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on an issue".

(4) "*In other circumstances the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact was more probable than its non-existence".*

The provision of Section 12 Evidence Act is as follows;

(1) *"Except as otherwise provided by law the burden of persuasion requires proof by a preponderance of probabilities."*

(2) *"Preponderance of the probabilities means that degree of certainty of belief in the mind of tribunal of fact or the court by which it is convinced that the existence of a fact is more probable than its non-existence."*

In the ***Evidence Act 1975, NRCD 323***, the burden of proof is that in assessing the balance of probabilities, all the evidence, be it that of the Plaintiff or the Defendants must be considered and the party in whose favour the balance tilts is the person whose case is more probable of the rival versions and deserving of a favorable verdict".

The law is therefore settled that the party who bears the burden of proof must produce the required evidence of the facts in issue that has the credibility for his claims to succeed.

See **ACKAH V PERGAH TRANSPORT LIMITED & OTHERS [2010] 2 SC GLR 728.**

In addition, the court in the case of **MAJOLAGBE VRS LARBI 1959 GLR 190**, per Ollennu J (as he then was) explained proof in Law as follows:

"Proof in Law is the establishment of facts by proper legal means. Where a party makes averments capable of proof in some positive way e.g. by producing documents, description of things references to other facts, instances, or circumstance and his averments is denied, he does not prove it by merely going into the witness box and repeating the averments on oath or having it repeated on oath by his witness. He proves it by producing other evidence on facts and circumstances from which the court can be satisfied that what he avers is true".

In the case of **MONDIAL VENEER (GH. LTD) VRS AMUAH GYEBU XV (2011) SCGLR 446** the Supreme Court speaking through Georgina Wood (as she then was) dealt with

the Burden of Proof with Respect to actions for declaration of title to land at page 475 of the report in the following terms:

"In land litigation …. the law requires the person asserting title and on whom the burden of persuasion falls ... to prove the root of title, mood of acquisition and various acts of possession exercised over the subject matter of litigation. It is only where the party has succeeded in establishing these facts on a balance of probabilities that the party would be entitled to the claim".

Similarly, the same burden of proof is required of a Defendant who counter- claim because he assumes the same role as a Plaintiff.

In **JAZZ AND CO. LTD VRS APPAU [2009] SCGLR 265 AT 271** the supreme court stated as follows:

"Thus, whenever a Defendant also files a counter–claim, Defendant then has the same burden of proof which will be used in evaluating and assessing the case of the Defendant just as it was used to evaluate and assess the case of the Plaintiff against the Defendant.''

See also **MALM VRS LUTTERODT 1963 GLR 5 SC** and **TANDO VRS ABBAN MENSAH [1992-93] GLR 308.**

In **GBEDEMAH VRS AWOONOR WILLIAMS [197] CC 12**, the supreme court threw some light on the nature of a counter – claim as follows: *a counter – claim is to all intends and purposes an action by the application against the respondent it is an independent and separate action*. The court relied on the case of **WINTERFIELD VRS BRADNUM 3 QBD 324** in the which Brett LJ said at page 326 as follows: *"A counter – claim is sometime a mere set–off, sometimes it is in the nature of cross – action; sometimes it is in respect of a wholly independent action. I think the true mode of considering the claim and counter- claim in they are wholly independent suits which for convenient of procedure are confined in one action.''*

Bowell LJ also said in **AMON VRS BOBBELT [1889] 22 QBD 543** at 548 as follows: a counter- claim is to be treated for all purposes for which justice required it to be so treated as an independent action.

The above authorities have been referred to by Justice Anim – Yeboah (JSC) in **FOSUHENE VRS ATTA WUSU (2011) 1SC GLR 273 at 286-287** as thus "*it is settled that a counter – claim is in law a separate and independent action which is filed together with the original claim of the Plaintiff.*"

The Plaintiff in support of his case tendered the following Exhibits in evidence:

i. **Exhibit A** - An Indenture of Defendant dated 16th April, 2007 covering the total acreage of the land in dispute (16.658 Acres)

ii. **Exhibit B** – Certified judgment in Suit No. BFA 49/13: Solomon Mintah Ackaah v Adams Addy & Adu Akwanor, declaring plaintiff as Head and Lawful Representative of the Akwanor family, and that all acts and transactions carried out by Adams Addy & Adu Akwanor in respect of Akwanor family lands are null and void.

iii. **Exhibit B1** – Certified judgment of the Court of Appeal affirming the decision in Suit No. BFA 49/13: Solomon Mintah Ackaah v Adams Addy & Adu Akwanor.

iv. **Exhibit B2** – Certified judgment of the Supreme Court affirming both the decision of the Court of Appeal with respect to the decision in Suit No. BFA 49/13: Solomon Mintah Ackaah v Adams Addy & Adu Akwanor.

v. **Exhibit C** - A land title certificate with certificate no: C1/04/18 covering the land in dispute (16.658) in the name of the Defendant's association.

DW1 tendered in evidence the following attached Exhibits.

i. **Exhibit 1:** An Indenture of Defendant dated 16th April, 2007 covering the total acreage of the land in dispute (16.658 Acres)

ii. **Exhibit 2:** A land title certificate with certificate no: C1/04/18 covering the land in dispute (16.658) in the name of the Defendant's association.

iii. **Exhibit 3:** A copy of an Entry of Judgement.

iv. **Exhibit 4:** A copy of a High court Judgment

v. **Exhibit 5:** A publication in the Ghanaian daily times.

vi. **Exhibit 6:** A copy of a judgment dated 24th March, 2022.

ANALYSIS, FINDINGS AND LEGAL OPINION

The starting point is the factual matrix surrounding the Defendant's acquisition and the central issue before the Court is whether the Defendant validly acquired the disputed land in 2007 from individuals who had lawful authority to grant land belonging to the Akwanor Royal Family of Ashalaja. This issue requires careful consideration of the evidence presented, the applicable principles of customary law, and the binding effect of judicial decisions.

It is an established principle of customary law that only the head of a family, or a lawful successor duly recognized by the family and, where applicable, the courts, has the authority to alienate family land. This principle has been repeatedly affirmed in case law, including **DOTWAAH & ANOR V AFRIYIE [1965] GLR 257 (SC), FIAKLU V ADJIANI [1992] 2 GLR 209 (CA), WORDIE V AWUDU BUKARI [1976] 2 GLR 371 (CA), AND MRS. VINCENTIA MENSAH V NUMO ADJEI KWANKO II (2015) JELR 64244 (CA).** The rationale behind this principle is the protection of family land from unauthorized alienation and the maintenance of orderly succession and administration of family assets.

In the present case, the Defendant contends that the land was lawfully acquired in 2007 from Adams Addy and Adu Akwanor, who were at the relevant time the joint heads of the Akwanor Royal Family. The acquisition was formalized through a duly executed indenture and site plan, and further secured by registration with the Lands Commission in 2008, resulting in Land Title Certificate GA 28472. Evidence from the Defendant indicates that Adams Addy had been appointed head of the Akwanor Royal Family in 2003, a position he maintained until 2009, when the Plaintiff claims to have been appointed. Notably, the Plaintiff has presented no evidence that Adams Addy or Adu Akwanor were removed, incapacitated, or otherwise deprived of authority before 2009.

Plaintiff's argument relies on the subsequent judicial recognition of his status as head of the family through the High Court judgment in *BFA 49/13* and its affirmation on appeal and by the Supreme Court. However, the principle that judgments bind only the parties and their privies is well established. As noted in *Taylor, A Treatise on the Law of Evidence, 11th edition, p.1144, para.1182*, a judgment cannot retroactively affect a stranger to the proceedings. The judgments relied upon by the Plaintiff, which address authority and acts occurring post-2013, therefore cannot retroactively invalidate the Defendant's 2007 acquisition.

The said judgment states as follows:

It is hereby declared that the plaintiff Solomon Minta Ackaah is the substantive Head of Family of the Akwanor Royal Family of Ashalaja and not the defendants.

2. It is hereby declared that any acts done by the defendants in their alleged capacity as joint Head of Family are null and void.

3. Defendants are to relinquish any assets of the Akwanor Royal Family that may had come to them by reason of their holding themselves out as joint family heads.

If someone "holds themselves out" as head of family and others acquiesce (do not object), courts may treat that person as the de facto head of family until proven otherwise.

Any significant actions taken by an unappointed person, such as the alienation (sale, lease, etc.) of family land or property, may be declared void ab initio (invalid from the outset) by a court.

It is against this background that the effect of Exhibit B, the judgment in Suit No. BFA 49/13, must be properly construed. While that judgment declared the Plaintiff as head of family and nullified acts done by Adams Addy and Adu Akwanor in their alleged capacity as joint heads, the declaration must be read in context. The judgment upheld the Plaintiff's appointment in 2009 and addressed the wrongful holding out by Adams Addy and Adu Akwanor *after* that appointment. It did not expressly or impliedly invalidate acts lawfully done by Adams Addy during the period when he was recognized as head of family, namely from 2003 until the Plaintiff's appointment in 2009.

Furthermore, the doctrine of *nemo dat quod non habet* "one cannot give what one does not have" is applicable only where the grantor lacks capacity at the relevant time. In this instance, the evidence indicates that Adams Addy, as head of the family, had the lawful capacity to grant land in 2007 as declared by the Defendant. Consequently, the Defendant's reliance on Adams Addy's authority, coupled with the registration of the land, confers presumptive indefeasible title under Ghanaian law, including Section 43(1) of PNDC Law 152.

In addition, the Defendant's acquisition was not merely a private transaction; it was duly documented and registered, establishing both legal and evidential proof of ownership. The Plaintiff has not adduced sufficient evidence to rebut this presumption or to demonstrate that the grant was tainted by fraud, mistake or any legal defect. As a result, the Defendant's acquisition is not only valid under customary law but is also protected under statutory law.

In the case of the **REPUBLIC V HIGH COURT, ACCRA EX PARTE LANDS COMMISSION (VANDERPUYE ORGLE ESTATES LIMITED INTERESTED PARTY) (1996) JELR 67820 (CA)**

The Respondent acquired a leasehold interest in a tract of land at known as Korkor Dzor from Nii Adja Kwao II, the James Town Mantse with the consent of the accredited elders.

Nii Adja kwao II was subsequently destooled, but the Respondent renegotiated the lease with the stool; and provided additional consideration.

The appellant the body empowered to recognize and record grants of stool lands threatened to withdraw its concurrence and refused to recognize a sublease made by the respondent.

The respondent applied to the high court for an order of mandamus to restore the lease to the appellant's property records.

The high court granted the order and the appellant appealed on the grounds that the chieftaincy tribunal declaration of Nii Adja kwao II nullity should render all his disposition null and void.

The court rejected this argument, stating that innocent third parties who acquire rights from chiefs whose enstoolments are subsequently declared nullities are protected by law.

Having considered the evidence, the applicable principles of customary and statutory law, and the relevant case authorities, it is clear that Adams Addy and Adu Akwanor held themselves out as having lawful authority to grant the disputed land in 2007.

The Defendant, having acquired the land from defacto grantors and having registered the title, validly acquired the disputed land. Any subsequent recognition of the Plaintiff as head of the family does not operate retroactively to invalidate a lawfully executed

grant. Therefore, the Defendant's 2007 acquisition is legally binding, and the Plaintiff's challenge to the validity of that grant cannot succeed.

The second issue before the Court is whether the Plaintiff's judicial recognition as the Head of the Akwanor Royal Family by the High Court, affirmed by the Court of Appeal and the Supreme Court, nullified or otherwise affects the Defendant's acquisition of the disputed land in 2007.

The Plaintiff's argument rests on the principle that only the duly recognized head of a family may alienate family land, and that subsequent recognition of his authority renders prior unauthorized alienations invalid. In support, the Plaintiff cites *BFA 49/13 (Solomon Mintah Ackaah v. Adams Addy & Adu Akwanor)*, which confirmed his status as the lawful head of the family, and authorities such as *Dotwaah & Anor v Afriyie [1965] GLR 257 (SC)* and *Fiaklu v Adjiani [1992] 2 GLR 209 (CA)*, which establish that alienation of family land without proper authority is void.

However, a careful examination of the evidence and applicable legal principles demonstrates that these judgments do not operate retrospectively to invalidate transactions executed by persons who held themselves out as having authority at the time. At the relevant time in 2007, Adams Addy had been recognized by a High Court judgment in *SOL/26/2016* as the head of the Akwanor Royal Family, and there is no evidence that his authority was removed or revoked before 2009, when the Plaintiff claims to have been appointed. The grant of the land to the Defendant thus occurred during a period when the grantors had lawful authority.

It is a well-settled principle of law that judgments generally bind only the parties and their privies. A person who is not a party to the proceedings, and whose interests were not represented, is not bound by the judgment. As noted in *Taylor, A Treatise on the Law of Evidence, 11th edition, p.1144, para.1182*, the doctrine of res judicata or the binding effect

of prior judgments cannot extend to strangers to the proceedings. In the present case, the Defendant was neither a party nor a privy to the High Court, Court of Appeal, or Supreme Court judgments recognizing the Plaintiff's headship. Accordingly, those judgments cannot retroactively divest the Defendant of title or nullify the 2007 acquisition.

Furthermore, the Defendant's title was formalized through registration with the Lands Commission, resulting in Land Title Certificate GA 28472. In law, registration confers a presumption of indefeasible title, as provided by Section 43(1) of PNDC Law 152. This statutory protection reinforces the position that the Defendant's acquisition is legally valid and cannot be invalidated by later judicial recognition of the Plaintiff's authority.

It is also important to note the temporal limitation inherent in the Plaintiff's judicial recognition. The High Court, Court of Appeal, and Supreme Court judgments relate to events and disputes arising after the Plaintiff's purported appointment as head of the family in 2009. They did not adjudicate on acts or transactions that occurred prior to that date, including the 2007 grant to the Defendant. As a matter of principle, a court cannot retroactively invalidate acts performed by a person who, at the time of the act, had lawful authority.

While the Plaintiff has been judicially recognized as the Head of the Akwanor Royal Family, this recognition does not nullify or affect the Defendant's 2007 acquisition. The grant was executed by persons holding themselves out with authority at the time, was formalized and registered, and is protected under the law. Therefore, the Defendant's title remains valid, and the Plaintiff's subsequent recognition as head has no retrospective effect on the legality of the 2007 transaction.

The next issue for determination is whether the judgments of the Amasaman Circuit Court, which declared the Defendant owner of the disputed land, are valid, binding, and operate as estoppel against the Plaintiff.

It is an established principle in law that a judgment is binding only on the parties to the proceedings and their privies. A person who was not a party to the action, and whose interests were not represented, cannot be bound by the judgment. This principle is clearly articulated in *Taylor, A Treatise on the Law of Evidence, 11th edition, p.1144, para.1182*, and is consistent with the doctrine of res judicata. The effect of a judgment is to prevent parties from relitigating issues that were or could have been raised in the proceedings in which the judgment was delivered.

The issue for determination under this head is whether the judgment delivered by the Amasaman Circuit Court, a court of competent jurisdiction, is binding on the defendants and their privies, including the plaintiff in the present suit.

The undisputed facts reveal that one Emmanuel Agyare and Hasim Haruna encroached upon the land in dispute. Consequently, the Ghana National Tailors and Dress Makers Association (TAIFA Zone), acting through its Chairman, Stephen Asomani, instituted an action against them at the Amasaman Circuit Court in Suit No. C1/04/18. In that suit, the plaintiff sought, among other reliefs, a declaration of title to the disputed land. Judgment was duly entered in favour of the plaintiff, and the court granted a declaration of title. The successful plaintiff proceeded to execution and obtained possession of the land.

Subsequently, on 8th August 2018, one Osumanu Quaye entered the proceedings as a claimant, asserting that the land belonged not to the defendants in the original suit but to the Akwanor Family of Ashalaja. Upon consideration of this claim, the court set aside the earlier judgment and directed that the matter be commenced afresh by the issuance of a new writ.

In his affidavit, Osumanu Quaye deposed that he was the customary successor of the late Naa Dansoa Kwanor and the head of the Kwanor family. As a result, the suit was reconstituted as Suit No. G/AN/CG/C1/29/20, with Emmanuel Agyare, Hasim Haruna,

and Osumanu Quaye named as defendants. The defendants were duly served and filed their statements of defence on 18th August 2020.

Thereafter, the defendants failed to actively participate in the proceedings. Upon application, the court ordered substituted service of the relevant processes and hearing notices, which were duly effected by the plaintiff. The plaintiff and its witness testified, and at the conclusion of the trial, judgment was again entered in favour of the plaintiff for all the reliefs sought. The plaintiff proceeded to execution and obtained a Writ of Possession. A copy of the Entry of Judgment was tendered in evidence as Exhibit 4 without objection.

The defendant in the present suit contends that this judgment, not having been set aside on appeal, is binding on the Akwanor Family of Ashalaja and their privies. It is evident that Osumanu Quaye, the third defendant in the Circuit Court action, is a member of the Akwanor family and defended the action in that capacity, asserting that the land formed part of family property. Consequently, the family and its members are privies to the judgment.

The plaintiff in the instant suit, Solomon Minta Ackaah, also claims through the Akwanor Family of Ashalaja and asserts that he is the head of that family, allegedly appointed on 9th July 2009. On his own showing, therefore, he derives his interest from the same family whose claim was litigated and determined by the Amasaman Circuit Court. It is instructive that the suit at the Circuit Court was initiated in 2020, long after the plaintiff claims to have assumed the position of head of family. There is no evidence before this Court that he was outside the jurisdiction or otherwise unaware of the proceedings instituted by Osumanu Quaye, a member of his own family, who sought to protect the land as family property.

In the circumstances, the court finds that the judgment of the Amasaman Circuit Court, delivered by a court of competent jurisdiction and remaining valid and subsisting, is

binding on the Akwanor Family of Ashalaja and all persons claiming through or under that family. The plaintiff, Solomon Minta Ackaah, being a member and purported head of the said family, is accordingly bound by that judgment.

The final issue for determination is whether the Defendant qualifies as an innocent purchaser for value without notice of any defect in the grantors' authority or of any competing claims by the Plaintiff.

In law, an innocent purchaser for value without notice is generally protected in equity and under customary law, provided that the purchaser acts in good faith, gives value for the property, and has no knowledge of any defect or competing claim. However, the purchaser is required to take reasonable steps to ensure that the grantor has lawful authority to convey the property. This principle is well established in authorities such as **DOTWAAH & ANOR V AFRIYIE (SUPRA), FIAKLU V ADJIANI (SUPRA),**

From the evidence before the Court, the Defendant acquired the land which is the subject matter of this suit in the year 2007. Upon acquisition, the Defendant entered into possession and occupation of the land without any interference or objection from any person. In 2008, the Defendant registered the land with the Land Title Registry of the Lands Commission and obtained Land Title Certificate No. GA 28472.

The Defendant has remained in continuous, open, and undisturbed possession and occupation of the land from 2007 until 2022, a period of fifteen (15) years. During this period, the Defendant undertook substantial developments on the land. These included the erection of corner pillars around the entire land, the demarcation of the land into building plots for members of the Defendant Association, and the erection of corner pillars around each individual plot. Evidence further shows that members of the Defendant Association expended considerable sums of money in developing their respective plots. While some structures remain uncompleted, others have been completed and are currently occupied by the members.

Although the Defendant did not tender photographic evidence of the developments on the land, the Court finds that the Plaintiff was aware of the existence of these developments. This awareness is clearly demonstrated in paragraph (d) of the Plaintiff's reliefs, wherein the Plaintiff seeks an order for the demolition of all structures erected by the Defendant, its agents, privies, and assigns on the land. Further admissions are contained in paragraph 15 of the Plaintiff's Statement of Claim and paragraph 17 of the Plaintiff's Witness Statement, where the Plaintiff expressly states that the Defendant entered the land and has been grading, developing, and selling portions of it to individuals without his consent.

The Plaintiff denied knowledge of this judgment but later under cross examination admitted knowledge of this judgment. He said "My Lord, the court nullified the judgment they obtained earlier on and I showed it to them. "

Plaintiff under cross-examination the following transpired.

Q. I put to you that defendants were duly served on 18/08/2020, they filed their Statement of defence.

A. My Lord, it is not true, I don't know anything about the case.

Q. After the defendants had filed their Statement of Defence they went to sleep and refused to attend Court.

A. My Lord, I don't know anything about that and nobody informed me about such a case.

Q. The Court ordered the various processes to be served on them through substituted service but they still refused to attend Court to respond to the various processes.

A. My Lord I don't know anything about the case because I was not a part of the case so there is nothing I can say.

Q. The court then ordered defendant, then plaintiff to give evidence to prove its case and judgment was given to the plaintiff.

A. My Lord I don't know anything about it.

Q. The defendant then plaintiff in that 2nd suit has already entered into execution and obtained possession before the plaintiff issued this Writ at the Honourable High Court.

A. My lord, it is not true, before I sued the defendant, I called him and told him that the land in dispute belongs to the Akwanor Royal Family and the defendant told me that it was one Adams Addy and Adu Akwanor who gave the land to him. My Lord, I informed the defendant that I have sued Adams Addy and Adu Akwanor in the court and obtained judgment against them so he should came so that we could sit down and talk, they never came, I called them twice but they never came. That is the reason why I sued them in the court.

This court treats the Plaintiff's testimony during cross examination with caution and accords it little evidential weight since his credibility is significantly diminished.

The Court is of the view that, even assuming without admitting that the Defendant acquired the land from persons not properly entitled within the Akwanor Royal Family of Ashalaja, the Defendant's long and uninterrupted possession, registration of title, and the substantial investments made by its members in developing the land place the Defendant within the category of an innocent purchaser for value without notice.

Furthermore, the Defendant's long-standing possession and use of the land continuous from 2007 to at least 2022 supports its claim to have acted in good faith and without notice of any defect. Section 10(1) of NRCD 54 (the Limitation Act) recognizes that actions to recover land cannot be brought after twelve years from the date the right of action accrues, and the Defendant's uninterrupted possession over a significant period strengthens its status as a bona fide purchaser. This position is reinforced by **NANTWI**

V AMENYA [2020] 154 GMJ 1*84*, which recognizes protection for innocent purchasers for value without notice.

The Plaintiff's awareness of the Defendant's acquisition, but failure to take timely action before initiating proceedings in 2013, further supports the Defendant's claim to protection as an innocent purchaser. There is no evidence that the Defendant had knowledge of any competing claim prior to the grant, nor is there evidence of fraud or collusion.

In conclusion, the court finds that the Defendant acted in good faith, provided value for the property, and had no notice of any defect in the grantors' authority at the time of acquisition. In light of these facts and the applicable legal principles, the Defendant qualifies as an innocent purchaser for value without notice. Consequently, the Defendant is entitled to the protection afforded under law, and the Plaintiff cannot rely solely on this status to invalidate the 2007 grant.

The final issue for determination is whether either party is entitled to the reliefs claimed in their respective pleadings, having regard to the legal and factual positions established in the preceding issues.

The Plaintiff seeks a series of reliefs, including: (i) a declaration as the lawful Head and Representative of the Akwanor Royal Family; (ii) a declaration that the Defendant's acquisition of the land is null and void; (iii) recovery of possession of the disputed land; (iv) cancellation of Land Title Certificate GA 28472; and (v) ancillary reliefs such as demolition, injunction, and costs.

The Plaintiff's claim to be recognized as the head of the Akwanor Royal Family is firmly grounded in law. The High Court, Court of Appeal, and Supreme Court judgments in *BFA 49/13 (Solomon Mintah Ackaah v. Adams Addy & Adu Akwanor)* have confirmed his position. On this narrow issue, the Plaintiff is therefore entitled to a declaration affirming his status as head of the family.

However, the Plaintiff's claims relating to the disputed land itself, nullifying the Defendant's acquisition, recovering possession, and cancelling the Land Title Certificate are not sustainable. The evidence demonstrates that the Defendant acquired the land in 2007 from Adams Addy and Adu Akwanor, who held themselves out as having lawful authority at the time. The Defendant formalized the grant through a duly executed indenture and secured registration with the Lands Commission, obtaining Land Title Certificate GA 28472. The Plaintiff's subsequent judicial recognition as head of the family in 2013 and later judgments cannot operate retrospectively to invalidate the 2007 grant. Moreover, the Plaintiff was not a party to the Amasaman Circuit Court judgments relied upon by the Defendant, and these cannot bind him or operate as estoppel. As such, the Plaintiff's claims regarding the land itself fail both in law and fact.

The Defendant, on the other hand, is entitled to the reliefs endorsed in its pleadings. The 2007 acquisition was executed by persons lawfully recognized as heads of the Akwanor Royal Family, and the Defendant acted in good faith, providing value and having no notice of any competing claim. The Land Title Certificate provides statutory protection and presumptive indefeasible title under Section 43(1) of PNDC Law 152. The Defendant also qualifies as an innocent purchaser for value without notice, as reaffirmed in authorities such as *Nantwi v Amenya [2020] 154 GMJ 184*. Consequently, the Defendant is entitled to a declaration confirming lawful ownership of the disputed land, protection of the registered title, and recognition of its status as an innocent purchaser for value without notice. Costs should also be awarded in favor of the Defendant.

The overall findings of fact, the Court holds as fact that the land in dispute forms part of the customary lands of the Akwanor Royal Family of Ashalaja, and that while the Plaintiff has been judicially recognized as the Head and Lawful Representative of the family, that recognition took effect only from 2009 onward and does not operate retrospectively. The Court further finds that in 2007, at the time the Defendant acquired the disputed land, Adams Addy (together with Adu Akwanor) was the recognized and functioning head of

the Akwanor Royal Family and therefore possessed the requisite authority under customary law to alienate family land. The Defendant acquired the land for valuable consideration through a duly executed indenture, took possession, and subsequently registered the title, resulting in the issuance of Land Title Certificate No. GA 28472. There is no evidence of fraud, lack of authority, or notice of any competing claim at the time of acquisition. The Court also finds that the subsequent judgments declaring the Plaintiff as head of family do not bind the Defendant, a stranger to those proceedings, and cannot invalidate a transaction lawfully completed prior to those judgments. Accordingly, the Defendant is found to be a bona fide purchaser for value without notice and the lawful owner of the disputed land, while the Plaintiff's status as head of family remains affirmed but does not affect the Defendant's valid and subsisting title.

The Court finds that while the Plaintiff is entitled to a declaration affirming his judicially recognized status as Head and Representative of the Akwanor Royal Family, he is not entitled to any reliefs that would invalidate the Defendant's 2007 acquisition or disturb its registered title. Conversely, the Defendant is entitled to a declaration of ownership, protection of its Land Title Certificate, recognition as an innocent purchaser for value without notice, and costs. The law and evidence, when considered together, clearly favor the Defendant's claim to the land, while simultaneously upholding the Plaintiff's status as head of the family. GH¢20,000.00 damages awarded in favour of defendants. Cost of ¢20,000.00 is awarded in favour of defendant.

(SGD)

H/L. ALEXANDER GRAHAM (J)

(JUSTICE OF THE HIGH COURT)

PARTIES : PLAINTIFF - PRESENT

STEPHEN ASOMANING REPRESENTING DEFENDANT'S

ASSOCIATION

COUNSEL : DARLINGTON AMOFA ESQ. HOLDING BRIEF OF C.A CHAMBERS ESQ. FOR THE PLAINTIFF –PRESENT

F. A. ACQUAYE ESQ. FOR THE DEFENDANTS – PRESENT